

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:
Date Purchased:

-----X
ROY MCMILLAN.

SUMMONS

Plaintiff,

Plaintiffs designate Queens
County as the place of trial.

-against-

THE CITY OF NEW YORK, POLICE OFFICER SEAN
DONOHUE TAX ID 960474, POLICE OFFICER DUERR
TAX ID 953830, JOHN DOES (1-3),

The basis of venue is the place
of occurrence, 711 Seagirt
Avenue, County of Queens,
New York.

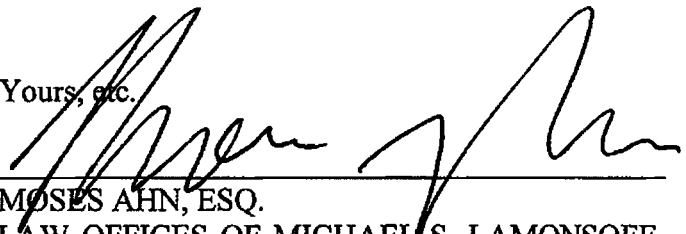
Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action and to serve a copy of their answer on plaintiffs' attorneys within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is served by delivery to an official of the State of New York authorized to receive service on defendants' behalf); and in case of defendants' failure to appear or answer, judgment will be taken against defendants.

Dated: New York, New York
March 18, 2019

Yours, etc.


MOSES AHN, ESQ.
LAW OFFICES OF MICHAEL S. LAMONSOFF,
PLLC

Attorneys for ROY MCMILLAN
32 Old Slip, 8th Floor
New York, New York 10005
(212) 962-1020
Our File No. 26760

TO:

THE CITY OF NEW YORK
c/o ZACHARY W. CARTER
CORPORATION COUNSEL, CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER SEAN DONOHUE TAX ID 960474
c/o New York City Police Department
101ST Precinct
16-12 Mott Avenue
Far Rockaway, New York 11691

POLICE OFFICER DUERR TAX ID 953830
c/o New York City Police Department
101ST PRECINCT
16-12 Mott Avenue
Far Rockaway, New York 11691

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE QUEENS

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ROY MCMILLAN.

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER SEAN
DONOHUE TAX ID 960474, POLICE OFFICER DUERR TAX
ID 953830, JOHN DOES (1-3),

Defendants.

-----X

Plaintiff, ROY MCMILLAN, by and through his attorneys, **THE LAW OFFICES OF
MICHAEL S. LAMONSOFF, PLLC**, as and for his Verified Complaint, respectfully alleges, upon
information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States of America.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.
3. This court has jurisdiction over each federal claim pursuant to concurrent jurisdiction.

VENUE

4. Venue is properly laid in the Supreme Court of the State of New York, in that the events giving rise to this claim occurred in Queens County in the State of New York.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

6. Plaintiff, ROY MCMILLAN, is, and has been, at all relevant times, a resident of the County of Queens, City and State of New York.
7. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.
9. At all times hereinafter mentioned, the individually named defendants, POLICE OFFICER SEAN DONOHUE TAX ID 960474, POLICE OFFICER DUERR TAX ID 953830, were duly sworn members of said department and were acting under the supervision of said department and according to their official duties. Each Defendant is sued herein in their official and individual capacities. At all times hereinafter mentioned, each Defendant was assigned to the 101ST Precinct of the NYPD.
10. At all times hereinafter mentioned the defendants, either personally or through their

employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.
12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, THE CITY OF NEW YORK.

FACTS

13. On February 8, 2017, at approximately 4:50 a.m., Plaintiff ROY MCMILLAN was lawfully present in front of or near 711 Seagirt Avenue, in the County of Queens, City and State of New York.
14. At this time, Defendants POLICE OFFICER SEAN DONOHUE TAX ID 960474, POLICE OFFICER DUERR TAX ID 953830, JOHN DOES (1-3), arrived at the location on duty and in uniform.
15. Without any legal justification or excuse, the Defendants DONOHUE, DUERR, and JOHN DOES (1-3) unlawfully seized, searched, and arrested Plaintiff.
16. Plaintiff was not engaged in any unlawful or suspicious activity.
17. Nonetheless Plaintiff was then assaulted by Defendants DONOHUE, DUERR, and JOHN DOES (1-3) without any legal justification or excuse.
18. None of the Defendants DONOHUE, DUERR, or JOHN DOES (1-3) made any efforts to prevent or stop the unlawful and unconstitutional actions of any other officer against Plaintiff, despite their clear and apparent opportunities to do so.
19. Plaintiff was not engaged in any violent or threatening activity and he did not resist arrest or

otherwise assault the Defendants.

20. Nonetheless, the Plaintiff was formally arrested, was placed in handcuffs, and was transported to the station house of a local area precinct believed to be the 101ST Precinct where he was searched and detained for several hours.
21. The search yielded no evidence of any guns, drugs, or contraband.
22. At no time on February 8, 2017, did Plaintiff commit any crime or violation of law.
23. At no time on February 8, 2017, did Defendants possess probable cause to arrest Plaintiff or to order Plaintiff's arrest.
24. At no time on February 8, 2017, did Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff.
25. Plaintiff was held for several hours at the stationhouse before he was transported to County Central Booking where he was held for several additional hours before he was arraigned on charges of Obstruction of Governmental Administration, Unlawful Possession of Marijuana, based on false allegations which each of the Defendants knew were false.
26. These and other allegations were false and Defendants knew they were false when they made them.
27. Pursuant to these false allegations, the Plaintiff was criminally charged with crimes he had not committed.
28. Plaintiff was then released from custody and was prosecuted for several months before the case the Obstruction of Governmental Administration charge was dismissed on August 29, 2017 and the Unlawful Possession of Marijuana charge was dismissed on September 6, 2017.
29. Defendants provided knowingly false and misleading information to prosecutors at the Queens County District Attorney's Office.

30. Each of the allegations were false and the Defendants knew them to be false when they were made.
31. As a result of the foregoing, Plaintiff ROY MCMILLAN sustained, *inter alia*, embarrassment, humiliation, physical injuries, and deprivation of his constitutional rights.
32. All of the aforementioned acts of Defendants, their agents, servants and employees, were carried out under the color of state law.
33. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.
34. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.
35. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
36. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted custom, usage, practice, procedure or rule of respective municipality/authority, which is forbidden by the Constitution of the United States.

**FIRST CLAIM FOR RELIEF AGAINST INDIVIDUALLY
NAMED DEFENDANTS FOR FALSE ARREST AND FALSE
IMPRISONMENT UNDER FEDERAL LAW, PURSUANT
TO 42 U.S.C. § 1983.**

37. Plaintiff ROY MCMILLAN repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
38. As a result of the Defendants' conduct, Plaintiff was subjected to illegal, improper and false arrest, taken into custody, and caused to be falsely imprisoned, detained, and confined without any probable cause, privilege, or consent.
39. As a result of the foregoing, Plaintiff's liberty was restricted, he was put in fear for his safety, and he was falsely arrested without probable cause

SECOND CLAIM FOR RELIEF FOR
DENIAL OF RIGHT TO FAIR TRIAL UNDER 42 U.S.C. §
1983

40. Plaintiff, ROY MCMILLAN, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
41. At no time did Defendants have any legal basis for commencing criminal process, nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable, or otherwise appropriate.
42. Defendants misrepresented and falsified evidence to the Queens County District Attorney.
43. Defendants did not make a complete and full statement of facts to the District Attorney.
44. Defendants withheld exculpatory evidence from the District Attorney.
45. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff.
46. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff.
47. Defendants acted with malice in initiating criminal proceedings against Plaintiff.
48. Defendants directly and actively involved in the continuation of criminal proceedings against Plaintiff.

49. Defendants lacked probable cause to continue criminal proceedings against Plaintiff.
50. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings against Plaintiff.
51. Notwithstanding the perjurious and fraudulent conduct of Defendants the criminal proceedings were terminated in Plaintiff's favor when his charges were dismissed in 2017.
52. By so doing, the individual Defendants, individually and collectively, subjected Plaintiff to fabrication of evidence, denial of fair trial, and denial of due process, and thereby violated, conspired to violate, and aided and abetted in the violation of Plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution.
53. By reason thereof, the individual Defendants have violated 42 U.S.C. §1983 and caused Plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of his constitutional rights.

**THIRD CLAIM FOR RELIEF AGAINST INDIVIDUALLY
NAMED DEFENDANTS FOR EXCESSIVE FORCE UNDER
42 U.S.C. § 1983**

54. Plaintiff, ROY MCMILLAN repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
55. As a result of the Defendants' conduct, Plaintiff was subjected to illegal, improper searches.
56. As a result of the Defendants' conduct, Plaintiff was subject to excessive force, as described herein.
57. As a result of Defendants' conduct, Plaintiff, ROY MCMILLAN was subjected to excessive force by the Defendants intentionally causing significant injuries, including contusions throughout his body, as described herein.
58. As a result of Defendants' conduct, Plaintiff, ROY MCMILLAN was subjected to excessive

force by the Defendants intentionally shoving and slamming his body, as described herein.

59. As a result of the Defendants' conduct, the Plaintiff was subject to a level of force by the Defendants in excess of what was reasonable under the circumstances.

60. As a result of the foregoing, the Plaintiff's liberty was restricted, and he was put in fear for his physical safety without probable cause or any legal justification, and he was physically injured.

**FOURTH CLAIM FOR RELIEF AGAINST
INDIVIDUALLY NAMED DEFENDANTS FOR
FAILURE TO INTERVENE UNDER 42 U.S.C.
§ 1983**

61. Plaintiff, ROY MCMILLAN, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

62. That defendants' failure to intervene to prevent and/or stop the improper and unconstitutional conduct of their fellow officers entitles plaintiff to recover monetary damages from these defendants under 42 U.S.C. § 1983.

**FIFTH CLAIM FOR RELIEF
FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

63. Plaintiff, ROY MCMILLAN, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

64. Defendants arrested, searched, and detained plaintiff, ROY MCMILLAN, in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search, arrest and incarceration would jeopardize Plaintiff's liberty, well-being, safety, and violate his constitutional rights.

65. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority

attendant thereto.

66. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
67. Those customs, policies, patterns, and practices include, but are not limited to:
- i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
 - iv. failing to properly train police officers in the requirements of the United States Constitution.
68. The aforesaid customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department directly cause, *inter alia*, the following unconstitutional practices:
- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
 - ii. arresting individuals regardless of probable cause in order to positively affect precinct-wide statistics;
 - iii. falsifying evidence and testimony to support those arrests;
 - iv. falsifying evidence and testimony to cover up police misconduct.
69. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department constitute a deliberate indifference to the safety, well-being and constitutional rights of Plaintiff, ROY MCMILLAN.

70. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.
71. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.
72. As a result of the foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, Plaintiff was placed under arrest unlawfully.
73. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.
74. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff's constitutional rights.
75. All of the foregoing acts by defendants deprived Plaintiff of federally protected constitutional rights, particularly their Fourth and Fourteenth Amendment rights to be free from unreasonable search and seizure.

WHEREFORE, the Plaintiff respectfully requests judgment against Defendants on each of the foregoing causes of action as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. §1988; and
- iv. directing such other and further relief as the Court may deem just and proper,

together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
March 18, 2019

A handwritten signature in black ink, appearing to read "Roy McMillan", is written over a horizontal line.

MOSES AHN, ESQ.
LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC
Attorneys for Plaintiff
ROY MCMILLAN
Financial Square at 32 Old Slip - 8th FL
New York, New York 10005
(212) 962-1020

VERIFICATION

MOSES AHN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

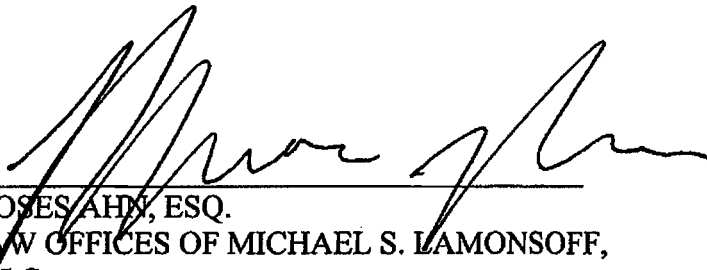
I am an attorney at LAW OFFICES OF MICHAEL S. LAMONSOFF, attorneys of record for Plaintiff, ROY MCMILLAN, in the action within. I have read the annexed

SUMMONS AND VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently in the county wherein the attorneys for the Plaintiff maintain their offices.

Dated: New York, New York
March 18, 2019



MOSES AHN, ESQ.
LAW OFFICES OF MICHAEL S. LAMONSOFF,
PLLC
Attorneys for Plaintiff
ROY MCMILLAN
Financial Square at 32 Old Slip - 8th FL
New York, New York 10005
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